

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MOSES DAMISA, *Complainant*

v.

TRANS ATLANTIC SHIPPING LLC, *Respondent*.

DOCKET NO. 1967(F)

Served: May 3, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER REQUIRING FOURTH JOINT STATUS REPORT

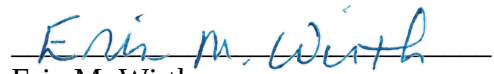
On April 30, 2021, the parties submitted their third joint status report, as required by the order issued April 1, 2021. The parties state that they have exchanged discovery requests and once discovery is complete, they will participate in virtual mediation through the Commission's Office of Consumer Affairs and Dispute Resolution Services ("CADRS"). The parties suggest filing another status report at the end of May.

In the next status report, the parties should report the specific schedule, including the deadline to complete discovery and to complete mediation. If the mediation is not successful, the parties should be prepared to brief the proceeding without additional discovery. Over four months have passed since this proceeding was filed and the discovery process should be concluding. The mediation should be scheduled and completed in the next month or two.

The parties are encouraged to complete discovery and pursue a resolution, including mediation through CADRS. The parties should be aware, however, that any requests for extension of deadlines must be approved by the undersigned—the mediator and CADRS do not have the authority to extend deadlines in this proceeding.

Given that progress is being made, the parties will be granted additional time to complete discovery, engage in mediation, and file their fourth joint status report. As noted in previous orders, the parties should only indicate in the joint status report whether mediation occurred, they must not provide any details regarding their positions in mediation. If a settlement is reached, the parties must submit a copy of the settlement agreement with a motion requesting approval.

Accordingly, it is hereby **ORDERED** that the parties be **GRANTED** until May 28, 2021, to finalize discovery, to schedule the mediation, and to file a fourth joint status report.


Erin M. Wirth
Chief Administrative Law Judge